

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Donald L. Skekel) Docket No. 2019-116
License No. 068.0094119)

REQUEST FOR SUMMARY SUSPENSION

NOW COMES the State of Vermont and hereby requests summary suspension of the Licensed Clinical Mental Health Counselor license of Respondent Donald L. Skekel:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").
2. The Board of Allied Mental Health is authorized by 3 V.S.A. §814 to summarily suspend the license of a Licensed Clinical Mental Health Counselor when it finds the public health, safety, or welfare imperatively requires emergency action.

Statement of Facts

3. Donald L. Skekel (the "Respondent") of Putney, Vermont is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor under license number 068.0094119. This license was originally issued on February 20, 2015 and expires on January 31, 2021.
4. Respondent is also licensed by the State of Vermont as an Alcohol and Drug Counselor under license number 151.0127227. This license was originally issued on January 10, 2017 and expires on January 31, 2021.
5. On July 12, 2019, Respondent was cited by the Attorney General of the State of Vermont for twelve counts of Medicaid Fraud in violation of 33 V.S.A. §141(d) for knowingly filing claims for services to a Medicaid recipient for services that were not rendered during the relevant time period from April 2015 through April 8, 2016.

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BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In Re: Donald L. Skekel
License no.: 068-0094119

) Docket No.: 2019-116
)

SUMMARY SUSPENSION ORDER

Participating Board Members:

Tammy Austin, Chair, Licensed Marriage and Family Therapist
Lynn Irwin, Non-Licensed/Non-Certified Psychotherapist
Michael Doyle, Public Member
Carol Smith, Licensed Clinical Mental Health Counselor

Prosecuting the case: Jennifer B. Colin, Esq.

Respondent: Did not appear and was not represented

Presiding Officer: Stephen A. Reynes

**Summary Suspension Order
FINDINGS OF FACT, CONCLUSIONS OF LAW,
AND ORDER**

This matter came before the Board of Allied Mental Health Practitioners on a Request for Summary Suspension of the Clinical Mental Health Counselor license of Respondent Donald L. Skekel filed by the above Prosecuting Attorney dated August 8, 2019. The Board has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. § 129(a); 3 V.S.A. § 129a; 3 V.S.A. § 814(d); 26 V.S.A. Chapter 65; the Administrative Rules for the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation.

Under 3 V.S.A. § 814 the Board of Allied Mental Health Practitioners is authorized to summarily suspend a license if it finds that public health, safety or welfare imperatively requires emergency action, and incorporates a finding to that effect in its order.

The hearing was held on August 15, 2019, at the Office of Professional Regulation in Montpelier, Vermont, pursuant to written Notice.

Findings of Fact

Based on a Review of the pleadings and the file, and on the evidence presented to the Board at the hearing, the Board finds as follows:

1. Donald Skekel (the "Respondent") is a Licensed Clinical Mental Health Counselor in the State of Vermont under license number 068.0094119, originally issued on February 20, 2015, and expires on January 31, 2021.
2. The Respondent is also licensed by the State of Vermont as an Alcohol and Drug Counselor under license number 151.0127227, originally issued on January 10, 2017, and expires on January 31, 2021.
3. The Prosecutor has filed a "Request for Summary Suspension," a copy of which is attached to this Decision and Order. The Respondent was sent Notice of the Summary Suspension Hearing, dated August 8, 2019, by first class mail and by certified mail at the address of P.O. Box 843, Putney, VT 05346-0843.
4. The State presented as evidence the testimony of Dennis Menard, an Investigator with the Office of Professional Regulation ("OPR"). Mr. Menard has been an Investigator with OPR for approximately seven years, during which he has investigated many cases of Medicaid Fraud. Mr. Menard interviewed Respondent outside his residence on August 9, 2019 in Putney. Mr. Menard hand delivered a copy of the Request for Summary Suspension to Respondent during this interview, as well as the Request for Summary Suspension of his License as an Alcohol and Drug Counselor in Docket No. 2019-117. [Testimony of Dennis Menard].
5. On July 12, 2019, Respondent was cited by the Attorney General of the State of Vermont for twelve counts of Medicaid Fraud in violation of 33 V.S.A. § 141(d) for knowingly filing claims for services to a Medicaid recipient for services that were not rendered during the relevant time period from April 2015 through April 8, 2016. State's Exhibit 1, which includes a Docket Sheet No. 662-7-19 Wrcr, *State v. Skekel, Donald*, a twenty-page Affidavit of Probable Cause and a Finding of Probable Cause.
6. During the relevant period, Respondent maintained a private counseling practice and also worked as a case manager at Phoenix House of New England (the "Facility"), an addiction recovery center in Brattleboro, Vermont that offers support services and transitional living for its clients.
7. Phoenix House does not provide clinical services for its clients.
8. In early 2016, the Facility discovered that Respondent had billed Medicaid for 60-minute individual therapy sessions with a resident ("Resident 1") of the Facility in February 2016.
9. Resident 1's counselor, who was not Respondent, billed Medicaid for therapy sessions with Resident 1 in February 2016, claims which were denied for duplication of services because Respondent had already billed Medicaid for therapy sessions in that month.
10. When the Facility inquired with Respondent about billing Medicaid for therapy sessions for Resident 1, Respondent admitted he billed Medicaid for the services and should not have done so.
11. Upon further investigation, it was discovered that during the relevant period, which began not even two months after Respondent became licensed as a mental health counselor by the State of Vermont, Respondent billed Medicaid for over two hundred (200) 60-minute individual therapy sessions, which did not occur, for twelve total residents of the Facility.

12. Respondent did not provide individual therapy sessions to the twelve residents of the Facility.
13. The Facility terminated Respondent's employment on April 11, 2016.
14. The Medicaid fraud case against Respondent is currently pending in Vermont Superior Court, Windham Criminal Unit, under Docket No. 662-7-19 Wrcr.
15. Respondent was arraigned on July 23, 2019 and pled "not guilty" to the charges.
16. The Conditions of Release for Respondent do not prohibit Respondent from working as a Licensed Clinical Mental Health Counselor or billing state and/or federally funded assistance programs.
17. Respondent's Licensed Clinical Mental Health Counselor license is presently active and unconditioned.
18. The evidence established that the Respondent violated:
 - 3 V.S.A. § 129a(a)(3): Failing to comply with provisions of federal or State statutes or rules governing the practice of the profession, incorporating 33 V.S.A. § 141(d) ("A person who knowingly files, attempts to file, or aids and abets in the filing of a claim for services to a recipient of benefits under a State or federally funded assistance program for services which were not rendered...shall be punished as provided in section 143 of this title.")
 - 3 V.S.A. § 129a(a)(7): Willfully making or filing false reports or records in the practice of the profession, willfully impeding or obstructing the proper making or filing of reports or records, or willfully failing to file the proper reports or records.
 - 26 V.S.A. § 3271(a)(3) Engaging in conduct that evidences unfitness to practice clinical mental health counseling.
 - 3 V.S.A. § 129a(b)(2) Failing to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) failure to conform to the essential standards of acceptable and prevailing practice.
 - 3 V.S.A. § 129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.
19. Respondent currently has an unencumbered license. Members of the public, patients and potential patients have no way of learning of Respondent's fraudulent conduct and will remain unprotected pending suspension of Respondent's license.
20. The evidence presented show facts which imperatively require emergency action for the public health, safety, and welfare.

Conclusions of Law

Our Findings of Fact and Conclusions of Law in this Summary Suspension hearing are for purposes of deciding whether *at this time* there is an imperative need to take emergency action. 3 V.S.A. § 814(c). Our Findings of Fact and Conclusions of Law herein are for purposes of this Order only.

The Prosecutor's Request for a Summary Suspension is supported by the evidence presented. The Board concludes that the allegations in the Request for Summary Suspension have been established to the necessary degree. For purposes of this Summary Suspension Hearing, the Findings of Fact above do support Summary Suspension of the Respondent's license. There is an imperative need to take emergency action. 3 V.S.A. § 814(c).

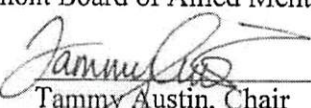
Vermont law requires that unprofessional charges be filed promptly with Respondent being afforded a prompt hearing. At any merits hearing in this matter, the prosecutor will bear the burden of proving unprofessional conduct. Our Findings and Conclusions in this proceeding will not absolve the prosecution or the Respondent from producing or challenging relevant evidence at a merits hearing. The Findings of Fact and Conclusions of Law at a contested hearing will be based exclusively on the evidence admitted at that hearing.

Order

The Request for Summary Suspension is **Granted**. Respondent's license is Summarily Suspended pending proceedings for revocation or other action. These proceedings shall be promptly instituted and determined. 3 V.S.A. § 814(c).

Vermont Board of Allied Mental Health Practitioners

By:


Tammy Austin, Chair

Date: August 27, 2019

DATE OF ENTRY: 8.28.19

APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Allied Mental Health. A party aggrieved by a final decision of a Board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, 89 Main Street, Fl. 3, Montpelier, VT 05620-3402 within 30 days of the entry of this order. If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a.

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6. During the relevant period, Respondent maintained a private counseling practice and also worked as a case manager at Phoenix House of New England (the "Facility"), an addiction recovery center in Brattleboro, Vermont that offers support services and transitional living for its clients.
7. Phoenix House does not provide clinical services for its clients.
8. Early in 2016, the Facility discovered that Respondent had billed Medicaid for 60-minute individual therapy sessions with a resident ("Resident 1") of the Facility in February 2016.
9. Resident 1's counselor, who was not Respondent, billed Medicaid for therapy sessions with Resident 1 in February 2016, claims which were denied for duplication of services because Respondent had already billed Medicaid for therapy sessions in that month.
10. When the Facility inquired with Respondent about billing Medicaid for therapy sessions for Resident 1, Respondent admitted he billed Medicaid for the services and should not have done so.
11. Upon further investigation, it was discovered that during the relevant period, which began not even two months after Respondent became licensed as a mental health counselor by the State of Vermont, Respondent billed Medicaid for over 200 60-minute individual therapy sessions, which did not occur, for twelve total residents of the Facility.
12. Respondent did not provide individual therapy sessions to the twelve residents of the Facility.
13. The Facility terminated Respondent's employment on April 11, 2016.
14. The Medicaid fraud case against Respondent is currently pending in Vermont Superior Court, Windham Criminal Unit under Docket Number 662-7-19 Wrcr.
15. Respondent was arraigned on July 23, 2019 and pled "not guilty" to the charges.
16. The Conditions of Release for Respondent do not prohibit Respondent from working as a Licensed Clinical Mental Health Counselor or billing state and/or federally funded assistance programs.
17. Respondent's Licensed Clinical Mental Health Counselor license is presently active and unconditioned.

Violation One: 3 V.S.A. §129a(a)(3) Failing to comply with provisions of federal or State statutes or rules governing the practice of the profession, incorporating 33 V.S.A. §141(d) ("A person who knowingly files, attempts to file, or aids and abets in the filing of a claim for services to a recipient of benefits under a State or federally funded assistance program for services which were not rendered...shall be punished as provided in section 143 of this title.").

18. The State re-alleges and incorporates Paragraphs 3 through 17 above.
19. Vermont law requires licensed clinical mental health counselors to comply with provisions of federal and State statutes and rules governing the practice of the profession.
20. Vermont law prohibits an individual from knowingly filing a claim for services to a recipient of benefits under a State or federally funded assistance program for services which were not rendered. See 33 V.S.A. §141(d).
21. Medicaid is a government program administered by the State and funded jointly by the State and federal governments to provide health coverage benefits to eligible individuals.
22. Paragraphs 3 through 17 above demonstrate that during the relevant time, Respondent failed to comply with State statute because Respondent knowingly billed Medicaid for services not rendered (i.e. therapy sessions which did not occur) to Facility clients in violation of 33 V.S.A. §141(d).
23. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(3), incorporating 33 V.S.A. §141(d).

Violation Two: 3 V.S.A. §129a(a)(7) Willfully making or filing false reports or records in the practice of the profession, willfully impeding or obstructing the proper making or filing of reports or records, or willfully failing to file the proper reports or records.

24. The State re-alleges and incorporates Paragraphs 3 through 17 above.
25. As a Licensed Clinical Mental Health Counselor, Respondent is prohibited from filing false reports or records in the practice of the profession.
26. Paragraphs 3 through 17 above demonstrate that Respondent has willfully made or filed false reports or records in the practice of the profession by filing false Medicaid claims for services he did not render to Facility clients.

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27. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(7).

Violation Three: 26 V.S.A. §3271(a)(3) Engaging in conduct that evidences unfitness to practice clinical mental health counseling.

28. The State re-alleges and incorporates Paragraphs 3 through 17 above.
29. As a Licensed Clinical Mental Health Counselor, Respondent is prohibited from engaging in conduct that evidences unfitness to practice clinical mental health counseling.
30. Paragraphs 3 through 17 above demonstrate that starting approximately two months after becoming licensed as a clinical mental health counselor by the State and over the course of a year, Respondent engaged in conduct that evidences unfitness to practice clinical mental health counseling, namely submitting false Medicaid claims for services he did not render to Facility clients.
31. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 26 V.S.A. §3271(a)(3).

Violation Four: 3 V.S.A. §129a(b)(2) Failing to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) failure to conform to the essential standards of acceptable and prevailing practice.

32. The State re-alleges and incorporates Paragraphs 3 through 17 above.
33. As a Licensed Clinical Mental Health Counselor, Respondent is required to conform to the essential standards of acceptable and prevailing practice that apply to every Licensed Clinical Mental Health Counselor in the State of Vermont.
34. The essential standards of acceptable and prevailing practice allow a Licensed Clinical Mental Health Counselor to only bill a client for services actually rendered.
35. Paragraphs 3 through 17 above demonstrate that Respondent has failed to conform to the essential standards of acceptable and prevailing practice by submitting false Medicaid claims for services that he did not render to clients.
36. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

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Violation Five: 3 V.S.A. §129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

37. The State re-alleges and incorporates Paragraphs 3 through 17 above.
38. As a Licensed Clinical Mental Health Counselor, Respondent must exercise independent judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.
39. Paragraphs 3 through 17 above demonstrate that Respondent has failed to exercise independent judgment in the performance of licensed activities when that judgment was necessary to avoid action repugnant to the obligations of the profession when he knowingly submitted false claims to Medicaid for over 200 therapy sessions which did not occur.
40. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(15).

Relief Requested

41. Members of the public, patients, and potential patients have no way of learning of Respondent's fraudulent conduct and will remain unprotected during the pendency of these proceedings. The facts as set forth above establish that in order to protect the public health, safety, and/or welfare of the people of the State of Vermont, emergency action is imperative.

WHEREFORE, the State of Vermont respectfully requests that pursuant to 3 V.S.A. §814(c), the Board summarily suspend the Licensed Clinical Mental Health Counselor license of Respondent, number 068.0094119, pending hearing on the merits.

DATED at Montpelier, Vermont this 9th day of August, 2019.

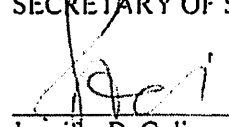
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STATE OF VERMONT
SECRETARY OF STATE

By:


Jennifer B. Colin
Prosecuting Attorney
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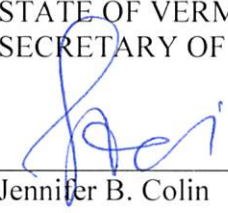
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